

## Deepak Jain v. State of U.P. & Others

Allahabad High Court · Division Bench · 4 September 2023 · 2023 SCC OnLine All 890 · Writ - C No. 24689 of 2023 · **Writ petition disposed of; connection application to be decided in four weeks**

### HEADNOTE

Electricity supply, monopolised by the U.P. Power Corporation, is essential for life. A tenant/occupier cannot be refused an electricity connection merely for want of the landlord's consent. Following the Division Bench in *Seema Mansoor v. U.P. Power Corporation Ltd.*, the application of a tenant is to be considered under Clause 4.4 read with Annexures 4.2 and 4.3 of the U.P. Electricity Supply Code, 2005, which provide either for a consent letter of the owner or, in its absence, an Indemnity Bond furnished by the lessee/tenant/occupier. The Court directed the competent authority to decide the tenant's pending application within four weeks after hearing the parties with a stake.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::4.4

Tenant's connection: owner's consent letter OR indemnity bond

#### QUESTION

Can a tenant be refused a connection for want of the landlord's consent?

#### HOLDING

No. A lessee/tenant/occupier cannot be refused a connection merely for want of the landlord's consent; under Clause 4.4 read with Annexures 4.2 and 4.3, the application is considered either on a consent letter of the owner or, in its absence, on an Indemnity Bond furnished by the tenant. The competent authority must decide the tenant's application within four weeks after hearing the stakeholders. ¶ 3-4

#### LIMITING FACTS

Tenant of a first-floor portion; application allotted a service number and inspection done, but connection not provided.

### PRINCIPLE TAGS

**clause-4.4-occupant-connection-on-indemnity-bond** A tenant/occupier is entitled to a connection under Clause 4.4 on the owner's consent letter or, absent it, an Indemnity Bond (Annexures 4.2/4.3); want of the landlord's consent is no ground to refuse. Lead authorities: *Seema Mansoor v. U.P. Power Corporation Ltd.*. ¶ 3

### TABLE OF AUTHORITIES

| AUTHORITY                                                                                                                                                 | PROPOSITION                                                                                                                                                                                                                | HOW TREATED                                             | CITED BY | TREATMENT |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------|----------|-----------|
| <i>Seema Mansoor v. U.P. Power Corporation Ltd.</i><br>Writ - C No. 28295 of 2014 (Allahabad HC, Division Bench)<br>Allahabad High Court (Division Bench) | An application for a connection cannot be refused for want of the landlord's consent; on furnishing an indemnity bond, a lessee/tenant/occupier cannot be refused a connection merely for want of consent of the landlord. | Followed as the governing Division Bench authority. ¶ 3 | Court    | Followed  |